

STATE OF NEW YORK

7532--B

2025-2026 Regular Sessions

IN SENATE

April 22, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to enacting the restriction of anticoagulant pesticide transactions for online and retail stores act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "restriction of anticoagulant pesticide transactions for online and
3 retail stores act" or "RAPTORS act".

4 § 2. Legislative intent. The legislature hereby finds and declares
5 that it is the policy of this state to ensure that aquatic, terrestrial,
6 and avian wildlife species remain a fully functional component of the
7 ecosystems they inhabit and move through in New York. It is the intent
8 of this act to facilitate this goal by prohibiting the general public
9 from purchasing and utilizing the world's deadliest rodenticides, which,
10 when misapplied or improperly used, can cause significant unintended
11 harm to non-target wildlife and the ecosystem.

12 This legislation also comes in the wake of Flaco's passing. Flaco, the
13 Eurasian eagle-owl whose escape from the Central Park Zoo and life on
14 the loose captivated New York, had been exposed at the time of his death
15 to four of the seven pesticides this bill restricts. The legislature
16 takes this action to protect all non-target species, not only raptors
17 such as eagles, hawks, and owls, but also the thousands of children and
18 pets exposed to anticoagulants that poison control centers receive calls
19 for each year.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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§ 3. Section 33-1301 of the environmental conservation law is amended by adding a new subdivision 14 to read as follows:

14. a. Except as provided in paragraph b of this subdivision, no person, business, or entity shall sell, offer for sale, distribute, or use any pesticide containing first-generation anticoagulant rodenticides (FGARs) or second-generation anticoagulant rodenticides (SGARs) within the state. This prohibition applies to all forms of sale, including but not limited to retail establishments, agricultural suppliers, and online or digital marketplaces serving customers located in the state.

b. (1) The prohibitions set forth in paragraph a of this subdivision shall not apply where a public safety risk, a risk to critical infrastructure, or specific agricultural circumstances exist, as described in paragraph c of this subdivision.

(2) The commissioner, in consultation with the commissioner of health and the commissioner of agriculture and markets, shall promulgate regulations to govern the exceptions pursuant to this paragraph and paragraph c of this subdivision. Such regulations shall require that alternative pest control methods are exhausted prior to the use of FGARs or SGARs and shall prohibit any application within five hundred feet of a designated wildlife habitat area.

c. The prohibitions in paragraph a of this subdivision shall not apply to the use of FGARs or SGARs for an agricultural activity, defined in section three hundred one of the agriculture and markets law, when conducted in any of the following locations:

(1) Warehouses used for the storage of foods intended for human or animal consumption;

(2) Agricultural food, beverage and condiment processing and production sites;

(3) Agricultural production sites housing water storage and conveyance facilities; or

(4) Agricultural production sites housing rights-of-way and other transportation infrastructure.

d. For the purposes of this subdivision the following terms shall have the following meanings:

(1) "First-generation anticoagulant rodenticide" or "FGAR" means any pesticide product containing any of the following active ingredients:

(i) Diphacinone.

(ii) Warfarin.

(iii) Chlorophacinone.

(2) "Second-generation anticoagulant rodenticide" or "SGAR" means any pesticide product containing any of the following active ingredients:

(i) Brodifacoum.

(ii) Bromadiolone.

(iii) Difenacoum.

(iv) Difethialone.

(3) "Wildlife habitat area" means any park, conservation area, wetland buffer zone, nature preserve, or wildlife refuge.

(4) "Alternative pest control methods" means non-chemical control measures, including but not limited to habitat modification, exclusion, and sanitation, as well as physical control measures such as snap traps, zap traps, live traps, repellants, owl boxes, and rodent birth control.

§ 4. This act shall take effect 1 year after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.